

24STCV03983 24STCV03983

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-02

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Case Number: 24STCV03983 Hearing Date: July 2, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 2, 2026

Case Name: Deang v. Glendora Congregate Living, Inc., et al.

Case No.: 24STCV03983

Matter: Motion to Expunge Lis Pendens

Moving Party: Defendants Suzanna Sinapyan, Hovaness Chamichyan, and Glendora

Congregate Living, Inc.

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff, a pro per litigant, apparently filed a lis pendens as to 549 E Ada Ave, Glendora, CA 91745.

Defendants Suzanna Sinapyan, Hovaness Chamichyan, and Glendora Congregate Living, Inc. now seek to expunge the lis pendens.

Code Civ. Proc. § 405.30 provides, “[a]t any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. . . . Evidence or declarations may be filed with the motion to expunge the notice. The court may permit evidence to be received in the form of oral testimony, and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32.”

Moreover, Code Civ. Proc. § 405.31 provides, “[i]n proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice where the court finds the pleading does not contain a real property claim.”

Code Civ. Proc. § 405.32 states, “[i]n proceedings under this chapter, the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice if the court finds the claimant has not established the probable validity of the real property claim.”

Here, Plaintiff failed to file any opposition, and, therefore, failed to carry her burden.

The Motion is granted.

Moving party to give notice.